CHAPTER 31 Chief Minister

In the scheme of parliamentary system of government provided by the Constitution, the governor is the nominal executive authority (*de jure* executive) and the Chief Minister is the real executive authority (*de facto* executive). In other words, the governor is the head of the state while the Chief Minister is the head of the government. Thus the position of the Chief Minister at the state level is analogous to the position of prime minister at the Centre.

APPOINTMENT OF CHIEF MINISTER

The Constitution does not contain any specific procedure for the selection and appointment of the Chief Minister. Article 164 only says that the Chief Minister shall be appointed by the governor. However, this does not imply that the governor is free to appoint any one as the Chief Minister. In accordance with the conventions of the parliamentary system of government, the governor has to appoint the leader of the majority party in the state legislative assembly as the Chief Minister. But, when no party has a clear majority in the assembly, then the governor may exercise his/her personal discretion in the selection and appointment of the Chief Minister. In such a situation, the governor usually appoints the leader of the largest party or coalition in the assembly as the Chief Minister and ask him/her to seek a vote of confidence in the House within a month.

The governor may have to exercise his/her individual judgement in the selection and appointed of the Chief Minister when the Chief Minister in office dies suddenly and there is no obvious successor. However, on the death of a Chief Minister, the ruling party usually elects a new leader and the governor has no choice but to appoint him/her as Chief Minister.

The Constitution does not require that a person must prove his/her majority in the legislative assembly before he/she is appointed as the Chief Minister. The governor may first appoint him/her as the Chief Minister and then ask him/her to prove his/her majority in the legislative assembly within a reasonable period.

A person who is not a member of the state legislature can be appointed as Chief Minister for six months, within which time, he/she should be elected to the state legislature, failing which he/she ceases to be the Chief Minister.

Further, the Chief Minister may be a member of any of the two Houses of a state legislature. Usually Chief Ministers have been selected from the Lower House (legislative assembly), but, on a number of occasions, a member of the Upper House (legislative council) has also been appointed as Chief Minister.

The Sarkaria Commission on Centre-State Relations (1983–88) made the following recommendations with regard to the selection and appointment of a chief minister:

1. In choosing a chief minister, the Governor should be guided by the following principles:
    1. The party or combination of parties which commands the widest support in the Legislative Assembly should be called upon to form the government.
    2. The Governor's task is to be see that a government is formed and not to try to form a government which will pursue policies which he/she approves.